

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL MORGAN.

Plaintiff(s),

-against-

CITY OF NEW YORK NEW YORK, CITY
POLICE DEPARTMENT, POLICE OFFICERS
ELLIOT ZINSTEIN ETAL.

Defendant(s)

-----X Index No.: 25277/2015

AMENDED SUMMONS

Plaintiff designated Bronx County
and the place of trial, the basis of
the venue is plaintiff resides in
Bronx County.

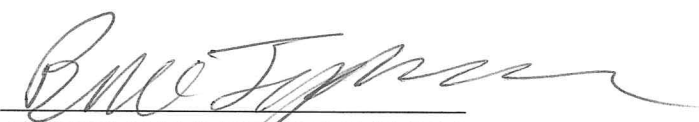
ADDRESS: 2934 Wilson Avenue
Bronx, New York 10466

-----X
TO THE ABOVE NAMED DEFENDANT(s)

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if the service is complete if this summons is not personally delivered to within the state of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 17, 2015

Yours, etc.,



TEPERMAN & TEPERMAN, LLC
Bruce R. Teperman, ESQ.
Attorneys for Plaintiff
MICHAEL MORGAN
15 East 40th Street, Suite 800
New York, New York 10016
(212) 725-2313

Defendant(s)
CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

1- Police Plaza

New York, NY 10038

POLICE OFFICER ELLIOT ZINSTEIN

33rd Precinct

2207 Amsterdam Avenue

New York, NY 10032

SUPREME COURT OF THE STATE OF
NEW YORK COUNTY OF BRONX

-----X Index No.:
MICHAEL MORGAN,

VERIFIED COMPLAINT

Plaintiffs,
-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE
OFFICER ELLIOT ZINSTEIN, ETAL.

Defendants.
-----X

Plaintiffs, by their his attorney, **TEPERMAN AND TEPERMAN, LLC**, as and
his complaint against the defendants herein respectfully set forth as follows:

PARTIES

1. That plaintiff at all times hereinafter mentioned, is a resident of Bronx County
in the City and the State of New York.

2. That defendants, THE CITY OF NEW YORK, (hereinafter "THE CITY"), and
THE NEW YORK CITY is municipal corporations, was still remain a business
corporation and politic constitutes a domestic municipal corporation duly organized and
existing under and by virtue of the laws of the State of New York, having their principal
place of business in the City of New York.

3. . That defendants, THE CITY OF NEW YORK, (hereinafter "THE CITY"),
and THE NEW YORK CITY POLICE DEPARTMENT (hereinafter "THE POLICE") is
a City agency, duly organized and existing under and by virtue of the laws of the State of
New York, having their principal place of business in the City of New York.

3. That heretofore and on the 26th day of September, 2014, a Notice of Claim was
duly served upon defendant CITY OF NEW YORK.

4. That the Notice of Claim was duly served upon defendant within 90 days after
the cause of action of plaintiff accrued.

5. That more than thirty days have elapsed since the service of the Notice of Claim upon defendant, and defendant and its comptroller have failed, neglected, and refused to pay, settle, compromise, or adjust the claim of plaintiff herein.

INTRODUCTION

6. That plaintiff has duly submitted to 50-h hearing regarding the justice of his claim on February 13, 2015.

7. That this action has been commenced within one year and 90 days after the cause of action of plaintiff accrued. This action is commenced by the plaintiff for money damages against defendants for committing acts under color of law and depriving the plaintiff of his rights secured by the Constitution and laws of the United States and the State of New York.

8. Plaintiff alleges that defendant police officers assaulted, physically detained, falsely arrested, falsely imprisoned, falsely accused, falsely charged plaintiffs with crimes and subjected him to excessive physical force, gross excessive force, prima facie tort, intentional tort, malicious prosecution, abuse of process, hate crimes, discrimination, conspiracy, cover up, improper investigation, falsification of police documents, false issuance of a police document, all in violation of plaintiff's civil rights and rights under 42 U.S.C. sections 1983 and 1985 and the Laws of the State of New York.

9. Plaintiff alleges that defendants, the City, and the Police, were negligent in training, hiring and supervising defendant police officers, thus leading to the assault, excessive force, gross excessive force, physical detention, abuse of process, abuse of authority, false arrest of the plaintiffs and Further, said occurrence was occasioned by the carelessness, recklessness and negligence of the respondents and their agents, servants, licensees and/or employees, governing the ownership, operation, maintenance, management and control of the defendant police department in arresting participating, investigating other officers, and all supervisors in the chain of command and investigating personnel, in failing to follow procedures as outlined in the NYPD patrol guide and other Police Department rules, regulations, protocols and guidelines.

10. Prior to the filing of this complaint, plaintiff, duly filed a Notice of Claim on the defendants THE CITY and THE POLICE DEPARTMENT OF THE CITY OF NEW

YORK in compliance with the New York State Municipal Law § 50 in pursuant SML50 a and 50H was held by the City of New York.

11. More than thirty (30) days have elapsed and defendants have failed and refused to pay or adjust the claim.

FACTUAL ALLEGATIONS

12. That the attack on the Plaintiff MICHAEL MORGAN (hereinafter) occurred in or about August 20th, 2014 at 7:00 a.m. at West highway and in about its Exit with West 172nd Street and its immediate vicinity, City and State of New York.

13. That at the aforesaid time and place plaintiffs was attempting to buy water for his infant child at the neighborhood grocery store. Without just cause or provocation Plaintiff was maliciously and viciously assaulted, attacked and brutalized and verbally assaulted with racial slurs by defendant NEW YORK CITY POLICE DEPARTMENT POLICE OFFICERS and subjected to false arrest, false imprisonment, false accusations of violations of the Penal Code, prima facie intentional tort and abuse of process by defendant police officers assigned, upon information and belief, to the 33rd police precinct.

14. That at the aforesaid time and place plaintiffs was stopped by defendant officers using tight handcuffs on him to further pummeling causing plaintiff s substantial injuries.

15. That defendant police officers then conspired to conceal and hide their crime by falsely arresting and detaining plaintiff (MICHAEL MORGAN) and falsely charging plaintiff with Resisting Arrest.

16. That plaintiff MICHAEL MORGAN complained to defendant officers at the scene that the handcuffs were so tight and causing him pain and had a physical condition and the handcuffs by them and that he had sustained injuries causing substantial pain. Defendant officers caused plaintiffs to sustain, among other injuries, left and right wrists, body abrasions, bruises, substantial pain, emotional injury, humiliation, mental distress.

and depression. Moreover, plaintiffs requested medical assistance. That the defendant police officers ignored plaintiffs' pleas for medical assistance..

17. That thereafter defendants further engaged in their efforts to hide and conceal their crimes

18. That plaintiff MICHAEL MORGAN was caused to sustain serious injuries, was caused to suffer severe trauma to his body and mind, requiring hospitalization. That plaintiff MICHAEL MORGAN suffered unconscionable trauma, debasement, and the humiliation of being viciously assaulted that morning and publicly arrested and assaulted with verbal abuse racial slurs and imprisoned without cause or justification.

19. That all of the officers present on the scene are jointly and severally liable for all of the acts complained of and damages sustained by the plaintiff herein.

**AS AND FOR A FIRST CLAIM
VIOLATION OF CIVIL RIGHTS**

20. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "19" of this complaint, with the same force and effect as is fully set forth herein.

21. That the defendants acting under color of law, without probable cause, just cause, provocation or any reason to believe that plaintiff MICHAEL MORGAN was engaged in any criminal activity, assaulted and battered said plaintiff falsely detained, falsely arrested and falsely imprisoned and said plaintiff and handcuffed that defendants conspired to violate said plaintiffs' constitutional rights.

22. That defendants without just cause wrongfully, willfully, maliciously and unreasonably seized plaintiff MICHAEL MORGAN herein and deprived him of his liberty and subjected plaintiffs to unreasonable, unconscionable, unjustified and unprovoked seizure and detention and subjected said plaintiff to false arrest and imprisonment in violation of rights afforded him by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution, 42 U.S.C. sections 1983, 1985 and the common law of New York State.

23. By reason of the foregoing, said plaintiff were deprived of his liberty, and was subjected to an unreasonable warrant less search and seizure along with ridicule, ridicule,

scorn and derision by those knowing of his detention and was otherwise damaged and injured in an amount to be determined by the trier of facts.

**AS AND FOR THE SECOND CLAIM
VIOLATION OF CIVIL RIGHTS**

24. That Plaintiffs, repeat, reiterate and realleges each and every allegation contained in paragraphs "1" through "23" of this complaint, with the same force and effect as is fully set forth herein.

25. That the defendants, acting under color of law and each of them separately and in concert, subjected plaintiff MICHAEL MORGAN to excessive force, gross excessive force and torture in violation of plaintiffs' rights afforded him by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution, 42 U.S.C. sections 1983, 1985 and the common law of New York State and the rights, privileges and immunities secured to plaintiff by the United States Constitution and laws of the State of New York.

26. Upon information and belief, said actions were carried out and condoned by the NEW YORK CITY POLICE DEPARTMENT, its agents, servants and employees who were acting within the course or scope of their employment.

27. That as a result of the willfully malicious and vicious assault, plaintiff were subjected to violations of their civil rights, permanent damage to their reputations and standing in the community, extreme physical, mental and emotional harm and distress.

28. By reason foregoing, plaintiffs has been caused to suffer from physical injuries and mental anguish and have been damaged in an amount to be determined by the Court in this action.

**AS AND FOR A THIRD CLAIM
VIOLATION OF CIVIL RIGHTS**

29. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" of this complaint, with the same force and effect as is fully set forth herein.

30. That defendants on and thereafter subjected plaintiff MICHAEL MORGAN to an unlawful, wrongful abuse of process and malicious prosecution in arresting plaintiff

without cause or reason and causing, creating, perpetuating, false criminal charges against plaintiff in violation of said plaintiff's rights afforded him by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution, 42 U.S.C. sections 1983, 1985 and the common law of New York State and his rights, privileges and immunities secured to Plaintiff by the United States Constitution and laws of the State of New York. .

31. By reason of the above, said Plaintiff have suffered great injury to his reputation. Defendants have deprived said Plaintiff of his liberty without due process of Law and, further exposed plaintiff to public scandal and disgrace; caused plaintiff to suffer great mental anguish and deprived plaintiff of his Federal and State Constitutional Rights.

32. By reason of the foregoing, plaintiff has been damaged in an amount to be determined by this Court in this action.

AND AS FOR A FOURTH CLAIM

33. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" of this complaint, with the same force and effect as is fully set forth herein.

34. Upon information and belief, defendants, actions were carried out and condoned by THE CITY OF NEW YORK and the New York City POLICE DEPARTMENT, its agents, servants and employees who were acting within the course and scope of their employment.

35. That defendants acted with malicious and malevolent intent to inflict harm upon plaintiff by, initiating criminal charges against Plaintiff MICHAEL MORGAN thereby abusing the process in violation of plaintiff's rights afforded him by the Fourth, Fifth, and Fourteenth Amendments of the United States Constitution, 42 U.S.C. sections 1983, 1985 and the common law of New York State and his rights, privileges and immunities secured to Plaintiffs by the United States Constitution and laws of the State of New York.

36. By reason of the above, plaintiff MICHAEL MORGAN has suffered great injury to his reputation. Defendants have deprived him of his liberty without process and,

further exposed plaintiff to public scandal and disgrace; caused plaintiff to suffer great mental anguish and deprived plaintiffs of his Federal and State Constitutional Rights.

37. By reason of the foregoing, Plaintiff MICHAEL MORGAN has been damaged in an amount to be determined by this Court in this action.

**AND AS FOR THE FIFTH CLAIM
PRIMA FACIE CONSTITUTIONAL TORT**

38. That plaintiffs, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "37" of this complaint, with the same force and effect as if fully set forth herein.

39. That the defendants acting under color of law, without probable cause, just cause, provocation or any reason to believe that plaintiff was engaged in any criminal activity, assaulted and battered plaintiff, grossly assaulted, excessively assaulted, aggravated assault and falsely detain, falsely arrest and falsely imprison plaintiff. That defendants conspired to violate plaintiff's constitutional rights..

40. That the said acts of defendants were outrageous, willful, wanton, malicious and oppressive and were motivated solely by a desire to harm plaintiffs without regard for plaintiffs' wellbeing and constituted prima facie constitutional tort.

41. That by reason of the foregoing plaintiff have been damaged in an amount to be determined by this Court in this action.

**AND AS FOR THE SIXTH CLAIM
ASSAULT AND BATTERY**

42. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" of this complaint, with the same force and effect as if fully set forth herein.

43. That defendants willfully caused plaintiff apprehension, of harmful and hurtful contact and physical harm. That the aforementioned action of the defendant constitutes assault and battery.

44. That the said acts of defendants were willful, unjustified, unwarranted, unprovoked and unwanted and were motivated solely by a desire to harm plaintiff without regard for plaintiff's rights.

45. That by reason of the foregoing plaintiff have been damaged in an amount to be determined by this Court in this action.

**AND AS FOR THE SEVENTH CLAIM
FALSE ARREST AND FALSE IMPRISONMENT**

46. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "45" of this complaint, with the same force and effect as if fully set forth herein.

47. That defendants without provocation, sufficient cause or reason subjected plaintiff to an unlawful arrest and imprisonment. That the aforementioned actions of the defendants constituted false arrest and false imprisonment.

48. That by reason of the foregoing plaintiff have been damaged in an amount to be determined by this Court in this action.

**AS AND FOR THE EIGHTH CLAIM
MALICIOUS PROSECUTION**

49. That plaintiff, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" of this complaint, with the same force and effect as if fully set forth herein.

50. That defendants knew that there was no basis for the institution and prosecution of criminal charges against plaintiff MICHAEL MORGAN. That the aforementioned actions of the defendants constitute malicious prosecution.

51. That by reason of the foregoing plaintiffs have been damaged in an amount to be determined by the Court in this action.

**AS AND FOR THE NINTH CLAIM
ABUSE OF PROCESS**

52. That plaintiffs, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "51" of this complaint, with the same force and effect as if fully set forth herein.

53. That defendants used their positions of authority to institute and perpetuate false and misleading charges against plaintiff MICHAEL MORGAN That the aforementioned actions of the defendants constituted abuse of process.

54. That by reason of the foregoing plaintiff have been damaged in an amount to be determined by this Court in this action.

**AS AND FOR THE TENTH CLAIM
GROSS NEGLIGENCE**

55. That plaintiffs, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "54" of this complaint, with the same force and effect as if fully set forth herein.

56 . That defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were grossly negligent, willful wanton in their conduct and acted with malice.

57. That by reason of the foregoing plaintiffs have been damaged in an amount to be determined by this Court in this action.

**AS AND FOR THE ELEVENTH CLAIM
NEGLIGENCE**

58. That plaintiffs, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "57" of this complaint, with the same force and effect as if fully set forth herein.

59. That defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were negligent, careless, in the investigation of the plaintiff and treatment of plaintiff.

60. That by reason of the foregoing plaintiffs have been damaged in an amount to be determined by this Court in this action.

**AS AND FOR THE TWELFTH CLAIM
NEGLIGENT HIRING AND RETENTION**

61. That plaintiffs, repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "60" of this complaint, with the same force and effect as if fully set forth herein.

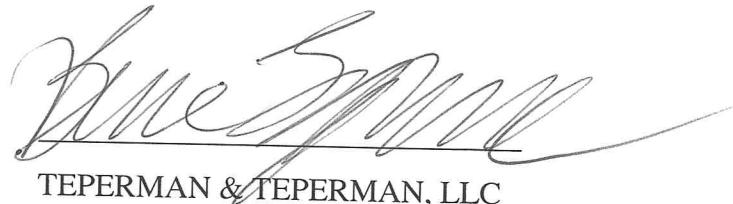
62. That defendants CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were negligent in the hiring, retention, training and oversight of the defendants Police officers. That the aforementioned actions of the defendants constituted negligent hiring and retention.

63. That by reason of the foregoing plaintiffs have been damaged in an amount to be determined by this Court in this action.

WHEREFORE, the plaintiff s demands judgment against the defendants the first and second cause of action in an amount in excess of the jurisdictional limits of all lower courts, together with costs and disbursements of this action.

Dated: New York, New York
November 17, 2015

Yours etc.,

A handwritten signature in dark ink, appearing to read 'Bruce R. Teperman', is written over a horizontal line.

TEPERMAN & TEPERMAN, LLC
Bruce R. Teperman, Esq.
Attorneys for Plaintiff(s)
MICHAEL MORGAN
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New York, NY 10016
(212) 725-2313

SUPREME COURT OF THE STATE OF
NEW YORK COUNTY OF BRONX

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MICHAEL MORGAN,

Plaintiffs,

-against-

CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER ELLIOT ZINSTEIN, ETAL.

Defendants.

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VERIFIED COMPLAINT

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